8/1/23 - National Grid, NY - 23-G-0225/23-G-0226

STATE OF NEW YORK

PUBLIC SERVICE COMMISSION

CASE 23-G-0225 - Proceeding on Motion of the Commission as to the Rates, Charges, Rules and Regulations of The Brooklyn Union Gas Company d/b/a National Grid NY for Gas Service.

CASE 23-G-0226 - Proceeding on Motion of the Commission as to the Rates, Charges, Rules and Regulations of KeySpan Gas East Corporation d/b/a National Grid for Gas Service.

PUBLIC STATEMENT HEARING

DATE: August 1, 2023 at 1:01 p.m.

VENUE: WebEx

BEFORE: A.L.J. MAUREEN LEARY

A.L.J. JAMES COSTELLO

Reported by Anthony McClain

(The hearing commenced at 1:01 p.m.)

THE REPORTER: We are on the record.

A.L.J. COSTELLO: Okay. Great. I call Case 23-G-0225 proceeding on motion of the Commission as to the rates, charges, rules and regulations of the Brooklyn Union Gas Company doing business as the National Grid, New York. And Case 23-G-0226 proceeding on motion of the Commission as to the rates, charges, rules and regulations of the KeySpan Gas East Corporation doing business as National Grid.

Good afternoon. We're here today for a public statement hearing that was noticed on June 20th, 2023. The Brooklyn Union Gas Company which does business as National Grid New York, which I'm going to refer to as KEDNY. And Key Span Gas East Corporation which is doing business as National Grid and which I will be referring to as KEDLI or as -- both companies I'll be referring to collectively as the companies.

They filed amendments to their gas tariffs schedules on April 28th, 2023. They proposed to increase their annual gas delivery revenues effective March 31st, 2024. KEDNY proposes to

increase its revenues by $414 million, which would be a 28 percent increase in base delivery revenues or a seventeen percent increase in total revenues.

KEDLI proposes to increase its revenues by $228 million, which would be a 24 percent increase in base delivery revenues or a 14 percent increase in total revenues. Although the actual bill impacts of these proposed changes on any particular customer class will vary based upon revenue allocation and rate design, the companies state that a typical KEDNY residential heating customer will have a $30.95 average monthly bill increase and a typical KEDLI residential heating customer will have a $28.52 average monthly bill increase.

Under New York State law, the Public Service Commission must consider a utility’s proposal and it may adopt or reject it in whole or in part or it may modify it. We are holding this public statement hearing so you can provide your comments on these proposals for the Commission's consideration.

My name is James Costello, and I am an Administrative Law Judge with the Department of Public Service. And with me today is Administrative Law Judge Maureen Leary who is also from the

Department of Public Service. Together, Judge Leary and I are responsible for presiding over the hearings in these cases and the development of a complete record in these proceedings for the Commission's consideration.

The Public Service Commission will decide what the company's terms and conditions of service will be. The Public Service Commission has seven members. The Chairperson Rory Christian and six commissioners, Diane Burman, James Alesi, Tracey Edwards, John Howard, David Valesky, and John Maggiore. I will now explain what the process is going to be today.

As stated earlier, the purpose is -- of the hearing is to provide you with an opportunity to tell the Commission your thoughts on the company's rate proposals. So statements that you make today will become part of the case record. We have a court reporter who will be preparing a transcript of the hearing, which will be included in the official record of this proceeding so that your comments can be considered by the members of the Commission. When it is ready, the transcript will be available for view on the Department of Public Service's website.

This hearing is not an evidentiary hearing and it's not a question-and-answer session. It's a forum to hear your comments. It's not the only opportunity for you to provide comments. If you did not preregister to speak in today's hearing, but you would like your views included in the record, there are a variety of other ways to comment that were listed in the public notice for today's event. There are also, if you're participating electronically, you can see those different ways that are listed on your screen. And you can make comments by submitting them on the Department's website, by email, by regular mail, or by telephone. And regardless of how you make those comments, they will be given equal consideration. Comments may be submitted and will be considered throughout the pendency of this proceeding.

Although you will see in the notice and you'll see on the screen if you're participating electronically that comments be submitted by August 4th, that is just so that the -- the parties in preparing their testimony will have the comment -- as many comments as they can have in front of them while they are preparing their testimony. However, we will

accept and consider, and the Commission will consider all comments submitted as long as these cases are pending.

If you have registered to make a statement, we -- we please ask that you summarize any lengthy written statement you have orally and you may submit the full written statement via email or mail. There are people basically who registered today electronically and what we ask you to do is you -- you should have -- make sure that you have audio input from one device. So if you're participating electronically but you're using your phone for -- for audio, just make sure that your computer also doesn't have its audio on or we'll have problems with feedback. We have a list of speakers and I will call the persons that have pre-registered one by one to speak. If someone is not available when I call them, I will continue with the next person and then we'll come back to those people who are not available at the end.

After I call your name, we will unmute your line. You should hear a tone and see that the microphone icon is no longer red. And please be reminded that if you put your own telephone line on

mute, you will also have to unmute your line before you begin to speak.

We ask that you please speak slowly and clearly so that the court reporter can accurately capture your statement for the record. When your line is unmuted, please state your name and if you are speaking on behalf of an organization, the name of the organization. And once we confirm we can hear you, you can then proceed to make your comments. So what I'm going to do is we have a member -- somebody representing the -- a member of the New York Assembly, I believe, and I'm going to start with that person first. So please unmute Virginia Rowlins. Rowlins.

MR. WHITE: So if Virginia called in, could she hit star three on her telephone? Raise your right hand by using your telephone. All right. Sangeetha, can we have that slide and have someone to --.

A.L.J. COSTELLO: Star three, if you're calling in, hit star three so that we can recognize you.

MS. KAILAS: Joe, this is the last slide. There's no more instructions after the

slides. Just --.

A.L.J. COSTELLO: Right. So if you -- if you -- if you --.

MR. WHITE: Okay. Thank you.

A.L.J. COSTELLO: And the -- there's a raise -- if you're calling, if you registered, there's a raised hand function on the computer. But if you called in, you would hit star three to be able to talk. All right. I don't see anybody so I'm going to go to the next person. Rebecca Duvall and she's participating electronically. Okay. Your line has been unmuted.

MS. DUVALL: Hi there. I am Rebecca Duvall. I live in Brooklyn, New York, and I just wanted to register my -- my voice that the rate hike should not be approved. It's further investing in fossil fuel infrastructure that we don't need. New York needs to put money into the future and not National Grid's profit-making plan.

Additionally, just to register sort of disrespectful and anti-democratic to hold these public hearings with such short notice as important as they are. Thank you.

A.L.J. COSTELLO: Okay. Thank you.

Our next speaker is Mary Finneran. She's also participating electronically. Okay. Your line has been unmuted. Mary Finneran.

MR. WHITE: Go ahead, Mary, you're unmuted. Mary?

A.L.J. COSTELLO: If you have -- if you are muted on your end, you would have to unmute that so that we can hear you.

MR. WHITE: Mary is unmuted. We can come back to her, Your Honor, you know.

A.L.J. COSTELLO: Okay. Well, we'll have to come back to you. Just check to see whether you're -- you have mute on your own -- on your end you have the mute on. Okay. Our next speaker is Sara Gronim. And Sara Gronim. Okay. Your line has been unmuted.

MS. GRONIM: Hi. My name is Sara Gronim. I live in Brooklyn. I'm a member of the climate group, 350 Brooklyn. My building is heated by fracked gas. The price of which has soared in the past few years. We are one of thousands of small and medium size co-ops in New York City, a critical source of housing in the city.

As everyone here is aware, housing is

already unaffordable for too many people, both owners and renters, and utility costs are a major reason why in New York City alone roughly 600,000 households are energy burdened including many of my neighbors in Brooklyn.

In this context, National Grid's proposal for a rate hike of seventy -- 17 percent is outrageous. National Grid is already a very profitable company. Its last rate increase supported its profitability very nicely. 300,000 -- $300 million a year as their most recent annual report of profits from its New York service -- service -- New York City service area shows. Moreover, National Grid has not been an honest participant in our efforts in New York State to decarbonize our economy.

For example, for years, National Grid has helped design and finance a group that's called New Yorkers for affordable energy which is solely a fossil fuel trade group. This group has worked acidulously to sow certainty in the minds of New Yorkers about the affordability and reliability of renewable energy compared with fossil fuels.

In February, New Yorkers for Affordable Energy commissioned a poll asking New

Yorkers their thoughts about electrifying buildings. But when the results showed that a majority of New Yorkers approved a ban on fossil fuels in new buildings the -- for its press release, the group cherry-picked subsets of the results that seem to show the opposite. As for their claim of affordability of fossil fuels, during the 2021 heating season, my building paid approximately $121,000 for gas for our boilers. A year later, during the '21, '22 season, we paid 211,000, an increase of nearly $90,000. And reliability, just look at Buffalo where during last December's blizzard National Grid substation froze as did pipelines leaving thousands literally out in the cold. I ask you, why am I paying National Grid to mislead my fellow New Yorkers about the affordability and reliability of renewable energy with its fracked gas that is unaffordable and unreliable.

Furthermore, while the National Grid now claims it supports New York's Climate and Community Protection Act, it actually works to undermine its implementation by proposing a variety of solutions to the climate crisis that will not lead us to full electrification based on renewable energy

sources. One example is its proposed hydrogen hub on Long Island. National Grid's website depicts the creation of a high -- of hydrogen using renewable sources, in this case offshore wind. But using renewable energy to create hydrogen is inefficient, far better to simply use the renewable energy directly.

The website points out accurately enough that hydrogen is the most abundant in the universe. But it then goes on to say that hydrogen has the potential to decarbonize difficult sections of the economy like and I quote, "industrial processes, heavy transport, and heating." With the graphic showing hydrogen flowing to a hospital and an apartment building. This is deliberate deceptive. National Grid cannot simply swap out its current product, the fracked methane gas that currently runs through a pipeline -- pipelines under our streets and into our basements with hydrogen.

Hydrogen is an explosive substance that can only be transplanted via plastic pipelines or specially treated steel. The cost of replacing the entire under-street network of pipelines, not to say all the lines to and in individual buildings is

unimaginable. And to what end? When hydrogen is burned for heat, it produces nitrous oxides dangerous to human health, not something you see with wind or salt water. Trying to shift attention to hydrogen as an alternative to renewable energy is deliberate misdirection.

National Grid is trying to stall the energy transition as long as possible in order to perpetuate its plan at destroying business model as long as it can. Why are we paying for this? It is the responsibility of the Public Service Commission to serve the public good. And at this point in our history, the public good requires the transformation of our economy to renewable energy.

I ask the PSC to carefully supervise the way National Grid spends its money so that its action support or at least do not obstruct our energy transition. Thank you for your time.

A.L.J. COSTELLO: Okay. Thank you. Our next speaker is Wayn Devonish. I do not see that -- him as an electronic participant. So if you're participating by telephone, please hit star three so that we can identify you and unmute your line. That's Wayn Devonish.

MR. WHITE: No raised hands, Your Honor.

A.L.J. COSTELLO: Okay. Let's see. Let's circle back. Okay. We'll go to Zoe Kaplan-Lewis and I see -- no. Okay. Let's see. Okay. Zoe Kaplan-Lewis. She’s just raised her hand and you have been unmuted. Your line has been unmuted.

MS. KAPLAN-LEWIS: Okay. Thank you. My name is Zoe Kaplan-Lewis and I live in Brooklyn, New York. I'm a volunteer with 350 Brooklyn which is a grassroots climate organization. I'm here today to urge the New York State Public Service Commission to reject National Grid's proposal to raise rates for gas service.

National Grid's proposal violates the mission and purpose of the New York State Public Service Commission to ensure access to safe, reliable utility service at just and reasonable rates and to protect the natural environment.

There is nothing safe or reliable about natural gas. As the summer of 2023 has shown in particular, our climate is experiencing a crisis. There is nothing safe or reliable about trees getting ripped up in Benson Harris. There is nothing safe or

reliable about fires that burn for days and weeks and months across the continent. A safe and reliable approach would be for National Grid to shut down the pipelines and transition to a clean energy company.

The National Grid is seeking more money from its customers in order to fix their own leaky gas pipelines that caused them to lose their own gas and diminish their profits.

National Grid already makes over $300 million in profit per year in New York and fixing these pipelines would lead to even more profits. In their proposal, National Grid states that they are advancing and supporting the climate leadership and Community Protection Act. And specifically, the climate action counsel's scoping plan. However, part of National Grid's proposal is to invest in renewable natural gas and green hydrogen. Both of these technologies are criticized in the scoping plan which states that the combustion of renewable natural gas and hydrogen is likely to result in polluted emissions similar to or greater than fossil fuel combustion.

If National Grid truly wanted to advance this --- and support the Climate Leadership

and Community Protection Act passed in 2019, they will propose a plan to meaningfully reduce greenhouse gas emissions caused by natural gas, which accounts for 46 percent of greenhouse gas emissions in New York State. Agreeing to National Grid's proposal would be a mistake. National Grid must be pushed toward the future and innovation. Natural gas pipelines have only existed for about 100 years. But if they exist for 100 more, Earth will no longer be livable.

Just as these pipelines were once the innovative new technology, it is time to -- for National Grid to move forward and innovate. National Grid should invest in technologies that harness the power of the Earth rather than pollute the Earth. I strongly urge the New York State Public Service Commission to hold National Grid accountable to its own failing machinery and to push them toward a more sustainable future by rejecting their proposal to burden customers with unreasonable rate hikes. It is unjust for National Grid to bill their customers to uphold infrastructure that diminishes the health our environment and our quality of life. Thank you.

A.L.J. COSTELLO: Thank you. Our next

speaker is Dr. Stacie N.C. Grant. Your line has been unmuted. And I just want to remind you that if you have mute on your own end, you would have to unmute for us to hear you.

MS. GRANT: Good afternoon, Your Honor. Thank you so much. My name is Dr. Stacie N.C. Grant. And I am the founder of Destiny Designers University. It's a training and development platform for Faith-preneurs which are faith-based entrepreneurs. And I'm participating today to talk about the opportunity that National Grid has created when it comes to being more responsible with how we approach the conversation around protecting our communities and the energy transition.

And also working around the parameters that is a constant challenge of keeping it affordable. While I am clear that things are not per -- perfect. I am very appreciative that as a community partner with National Grid, we are able to find vendors and also potential workforce that want to participate in creating the answers to the challenges that we face with weatherization and energy efficiency through the National Grid's grid

collective. And that program seeks the talent that can help to offset what we know has not been the best opportunities for a safe environment for New Yorkers.

But I am confident that with the way in which they are investing in community, that they are partnering with those who have a desire to work in the grid space. And be able to provide the right solutions for effective energy sources and renewable energy sources that we can get to a point where we see a meeting of the minds from those of us who are concerned about how we live and breathe in this state. And balance that with the infrastructure and the cost that is also a part of making it a successful perspective.

So I just wanted to speak on the record today as a community partner that I see the opportunity, that I know there are still challenges that exist. But they have made a good faith attempt to work with individual vendors and workforce development opportunities to bring the best ideas and participation in making sure that we contribute to this planet being safer for all of us to live and breathe. Thank you so much.

A.L.J. COSTELLO: Thank you. Our next

speaker will be Matthew Aracich. If you are calling in, please hit star three so that we can recognize you and unmute your line. That's Matthew Aracich.

MR. WHITE: Yeah. You have no raised hand.

A.L.J. COSTELLO: Okay. We'll come back. Our next speaker then will be Dave Daniels.

MR. WHITE: Your line is unmuted.

MR. DANIELS: Greetings.

A.L.J. COSTELLO: Okay. Hi. We can hear you can go -- go ahead and give your statement.

MR. DANIELS: Yeah. Thank you so much for being in this public hearing. And my written statement was prior submitted. So I would ask this panel to consider that for the record in support of National Grid support. Thank you.

A.L.J. COSTELLO: Okay. Thank you. Okay. Our next speaker is David Manning. Okay. We're just waiting to unmute your lines. Okay. It looks like your line has been unmuted.

MR. MANNINGS: Thank you. Can you hear me?

A.L.J. COSTELLO: Yes, we can hear you.

MR. MANNINGS: Good. Thank you. Yes. Thank you, panel. My name is David Manning. I'm appearing today in my personal capacity as a resident of Long Island. I'm also appearing as Director of Stakeholder Relations for Brookhaven Science Associates. We are a -- a corporation which operates the Brookhaven National Laboratory on Long Island. It's the only national laboratory in the U.S. northeast and its 5,000 acres, 300 buildings, 3,000 employees. So it's a very significant customer of -- of KEDLI and -- and National Grid. It also is very intimately involved in the research that will be required to decarbonize and meet the goal set out in the New York state CL-CPA. I think it's premature to say what technologies will be available that will help us meet those goals and decarbonize by 2050. But we're working very seriously on grid storage, on various different challenges to electrification.

What we are very -- and -- and I speak in support of this application for the -- for KEDLI and KEDNY because they are investing in the technology and the infrastructure which will facilitate that future. The investment they are making in terms of the distribution system will

accommodate hydrogen, will accommodate renewable -- natural gas and I would suggest to you that both in additional supplies of non-carbon fuels will be necessarily for the future. It's also noteworthy that they're very heavily involved in the community. We rely on them for input in terms of our own performance and their support for the community is -- is ever present. We have been experiencing in just the last few months the most extreme cases of climate change. And we believe that the effort that they are making to upgrade their system and to blend fuels and -- and fund research and do research into the future energy mix of Long Island and New York will be critical to our future.

So in summary, we don't know what technologies are going to deliver the carbon-free state of the future. But it's critical that we pursue all of them. There's -- there's a fortune being invested in the future of hydrogen. There's like a very advanced and sophisticated sources of -- of -- of renewable and natural gas. And I would suggest that KEDLI and KEDNY are in the forefront of all of those efforts.

So once again, we thank them for the

support that they provide in the community. And we are very much part of this community and see them everywhere that they should be and supporting the community in the ways that the community needs to be supported. And we also of course have -- have enjoyed a highly reliable service. And I think reliability is very, very important to all of us, particularly this instant -- this facility, that even as individuals, I think reliability is a forefront. I am a gas customer. But we also, of course, know that this investment for the future will be critical to getting us where we need to go. Thank you very much.

A.L.J. COSTELLO: Thank you. Our next speaker is Fred Harrison. Okay. Your line has been unmuted.

MR. WHITE: Good afternoon, Fred. Your line -- your line is unmuted. You can go ahead and speak. You might be muted on your end.

A.L.J. COSTELLO: No. I'm still not hearing anything.

MR. WHITE: I'm not hearing anything either, Your Honor.

A.L.J. COSTELLO: Okay. What I'm

going to go do is just go back through the names of the people that we've called before. And I will come back to you as well, Mr. Harrison. So I'm going to start with Mary Finneran. Mary Finneran, if you are on the line, please hit star three. There we go.

MS. FINNERAN: Hi. Can you hear me?

A.L.J. COSTELLO: Yes, we can hear you.

MS. FINNERAN: Okay. Okay. My name is Mary Finneran. I live in Greene County, New York, home of the proposed -- one of the proposed compressor stations that is going to be expanding in order to supply gas to New York City and Long Island. I -- I really -- this proposal to expand the gas going through this pipeline which was badly built 38 years ago and was the second largest fine in EPA history at the time, second only to the Exxon Valdez spill. And the -- and the pipeline was never properly rectified for all the mistakes that were made.

I'm afraid that if they increase their compression at the Athens Gen Power Plant, the compressor station from 10 to 22 and to Dover from 20 -- 10 to 18. And at the -- the two plants -- or

rather the Brookfield in Connecticut to a whooping 42,000 gas will really be putting National Grid in a bad light should and likely will there be some incidents. There was an incident in Massachusetts and one in Connecticut where when they opened up pipelines to greater capacity, there were explosions with many homes being destroyed. I oppose using the Iroquois Pipeline. It has not had its air permits approved in either New York State nor Connecticut. And Connecticut has no connection to this except for being used as a means for National Grid to get gas.

I would request that National Grid and -- and think that with their power and their money, they could look into things in New York State in the same area where these compressor stations are, the Hudson Valley, and using the Hudson River for in-stream turbine hydroelectric. They could use that hydroelectric. I recognize that National Grid down in New York City and Long Island, they use gas only. So they are desperate to maintain that business, to maintain the gas in New York. And -- but it’s -- it will behoove -- New York City, New York State, the country, and the planet, nothing when there's going to be explosions, when there's going to be further

climate catastrophes. Please Public Service Commission, do your job and serve the public. All of this power and all of this gas would be public and not for private gains for their shareholders who have no benefit and don't live in the area. Thank you.

A.L.J. COSTELLO: Thank you. And before we go to our next speaker, I just want to say for people that are having difficulty for whatever reason, there's a -- there's a phone number that you can call for technical difficulties which I will read out. And also if for whatever reason you cannot speak this afternoon. And if you call that number and -- and figure out what the difficulty was. We are having another hearing at six p.m. this evening. And we will gladly hear your comments then if we can't get your comments today at this time. So that number is 1-800-342-3330.

MR. WHITE: I think Fred is unmuted now.

A.L.J. COSTELLO: Okay.

MR. HARRISON: Yes.

A.L.J. COSTELLO: Mr. Harrison.

MR. HARRISON: Yes. Can you hear me?

A.L.J. COSTELLO: Yes, we can hear

you.

MR. HARRISON: Thank you very much for straightening this out. My name is Fred Harrison. I live in Merrick on Long Island. I'm a retired teacher and I'm a volunteer with Food and Water Watch on Long Island. I'm also a doubled National Grid ratepayer because I heat my home and hot water with natural gas plus I also use electricity So I get treated to National Grid services and rates twice. I don't mean to be humorous by what I'm going to say next. But I'm -- but it may come off that way. I'm here to ask for a rate reduction for everybody.

I was hoping given the current climate situation that National Grid would be asking for a mea culpa or some kind of apology or some kind of expression of their past transgressions to where we've gotten and to where we are right now. But clearly, that's not the case. What we've gotten is another rate increase. And what is rather stunning about this rate increase is that there never seems to be enough.

Because when I looked up from their own National Grid report of their natural performance, it listed that in 2023, they had a 12

percent increase in their underlying operating profit, a 12 percent increase up to almost $900 million in New York for the year. They report that their underlying operating profit, that is the rate of return that they received, averages 13 percent in New York and again this is from their own report. Now this is astounding. It's astounding for lots of reasons. It's astounding because first of all we know that rates have continually gone up even though they've gone up in a jagged fashion over the past 10 years.

Natural gas rates have continued to increase as has their delivery charges. So rather than coming into the Public Service Commission, seeking a way to wind down their activities, to actually reduce rates so that ratepayers like myself. I'm a retiree on a fixed income on social security could devote more of my energy down to putting it into renewable energy. But they come in and ask for a rate increase. So I very simply ask and hope that the Public Service Commission will deny any rate increase until National Grid can show very clearly a plan to wind itself down and to end the damage that it's doing. Thank you very much.

A.L.J. COSTELLO: Thank you. Okay. I'm going to try again Wayn Devonish. Wayn Denonish, if you are calling in, please hit star three so that we can identify you and unmute your line. I am not seeing anyone. So I'm going to go on to Matthew Ararich -- or I'm sorry, Matthew Aracich. Again, if you're calling in, please hit star three.

MR. WHITE: No raised hand, Chairman.

A.L.J. COSTELLO: Okay. And then we'll go to Virginia Rowlins. Again, if -- if you're calling, please hit star three so we can identify you and unmute your line.

MR. WHITE: No raised hands.

A.L.J. COSTELLO: No. I don't see anyone. Okay. So we've reached the end of the end speakers that we have that are registered. We will open it up now. If there's anyone who is participating or on the line and did not register but would like to make comments here today, if you're participating by telephone, we'd ask you to hit star three. And I -- otherwise -- okay, we see a few raised hands.

MR. WHITE: So I'm going to go with the first one, sir. Yeah.

A.L.J. COSTELLO: Andrew Saaverda.

MR. WHITE: Okay. Thank you.

MR. SAAVERDA: I just want to make sure that you can hear me.

A.L.J. COSTELLO: We can hear you. Yes. You can make your statement.

MR. SAAVERDA: Good afternoon, A.L.J.s Leary, and Costello. My name is Andrew Saaverda and I'm speaking today on behalf of the Public Utility Law Project of New York, a/k/a PULP. PULP is a 40-year-old non-profit whose mission is educate, advocate, and litigate on behalf of low and fixed income utility customers throughout New York State. I'm here this afternoon to share some of PULP's concerns with KEDLI and KEDNY's proposed rate increases and to encourage the commission to closely examine this requested increase to ensure that customers are not saddled with unjust rates.

As was noted in the beginning of this hearing, KEDNY or National Grid of New York City, is requesting a revenue increase of 414 million. KEDLI or National Grid Long Island is requesting an increase of roughly 228 million. These increases if permitted would result in a typical New York City

8/1/23 - National Grid, NY - 23-G-0225/23-G-0226

gas-heating customer receiving a monthly bill increase of $30.95 and an increase of $28.52 per month for a typical Long Island gas-heating customer.

And these increases in and of themselves will prove completely unaffordable for many of the low- and fixed-income customers who PULP represents. But it is important to consider the context in which the companies are requesting this rate increase. As of June 2023, there are 253,682 accounts in the company's service territories that are at least sixty days behind on their gas bills, 253,000. That's over a quarter of a million households who are struggling to keep the gas on in their homes right now.

In total, they owe nearly $200 million. These figures have been steadily increasing since the application of phase two EAP credits, illustrating that the affordability crisis is still ongoing. Moreover, we must not ignore the fact that KEDNY customers will also be seeing increases in their electric bills resulting from the recently approved Con Edison rate hike.

At a time when many customers are forced to choose between paying their rent, paying

their utilities bills, and paying for food or medicine, we cannot reasonably expect customers to endure these requested increases to their gas bills. This process is at a very early stage and PULP has joined the proceeding as a party. Our organization is currently working on our initial testimony and we look forward to continuing our advocacy during the remainder of this rate case. Thank you.

A.L.J. COSTELLO: Thank you. Okay. The next speaker will be Jean Belford. Okay. Your line has been unmuted.

MS. BELFORD: Just unmute -- hi. Good afternoon. My name is Jean Belford. I am a resident of Rockaway Beach in Queens and founder of a group, Rockaway Women for Progress, and survivor of Hurricane Sandy, particularly after deadly fires ravaged Sandy on the night of her -- ravaged Rockaway on the night of Hurricane Sandy leaving the next day at least a hundred fifty homes burned to the ground. And that was the result of having passed off electrifying responsibilities to National Grid. And National Grid had not turned off the electric in Rockaway which caused electrical fires and then from gas that was on the water, the fires just spread, and

-- and basically took out parts of the community that would have just been dealing -- just I say with devastating flooding. But instead, houses were burned to the ground. So as far as my lived experience with National Grid and LIPA when it comes to worrying about customer safety, I don't have a lot of confidence there.

As an organization and as -- and as a ratepayer, we are -- we have fought the Williams Pipeline. We are in such -- like everyone is on this planet. But in Rockaway on a little spit of land between Jamaica Bay and the ocean, we are about as vulnerable as you get. So safety really does matter to us. And we are very interested in renewable energy. As someone who's in the five boroughs, I know that, or at least I am under the assumption from contractors, that as of the end of December 2023, new construction, at least residential construction will no longer accept gas into the homes.

So I -- this really just feels like an infrastructure grab at a time that particularly on the five boroughs, all the laws and policies are phasing out fossil fuels. So it almost feels like either a money grab for a short-term gain because the

long term is going to be lost or maybe to hold us to fossil fuels longer because, hey, this is the safe -- we'll say that this is the safest way. Either way, it's not what as an individual or a group here in Rockaway. It's -- it's not the right direction and it's certainly not how we want to be spending our money. And if we're talking about safety, I think you've lost the confidence of a lot of people in Rockaway a long time ago. Thank you.

A.L.J. COSTELLO: Thank you. Okay. Our next speaker will be Kim Fraczek. Your line has been unmuted. It looks like it's been muted again. Let's -- can we try to unmute. There we go.

MS. FRACZEK: Okay. Thank you so much. Yeah. I'm going to have a longer testimony at one of the evening hearings. But, you know, I'm Kim Fraczek. I'm from Sane Energy Project. And I think a number of you know who I am. And, you know, you announced these public hearings on July 25th. And I just want to let you know what Sane Energy Project did. We scrambled to make sure that we could prepare our members and other community groups to the fact that these hearings even existed.

And people were like oh no, I'm on

vacation. You know, we had, you know, about five days to prepare the public for these hearings. And I just don't think that that is adequate.

So I just want to let you know that, you know, we as a very, very, you know, under-resourced community group moved mountains to make sure that people got to this hearing today. And I also want to let you know that I understand some folks spoke in favor of National Grid. And those are -- those are folks that are getting what National Grid calls community grants.

So, you know, National Grid is really, you know, pushing and they want to invest 4 billion of our dollars over the next 4 years into fracked gas infrastructure. And as Jean just pointed out, you know, this is in the wrong direction. I am asking every single one of you, Your Honors and at the -- and folks at the Department of Public Service, please be conscientious objectors. This is real. The -- the climate crisis is real. I will have more substantive -- substantive comments at one of the evening hearings but thank you for your time.

A.L.J. COSTELLO: Thank you. Okay. Before we go, I'm just going to open it up again. If

you're participating electronically and you want to make a statement, you can use the raise-hand function at the bottom of your screen. If you are participating by telephone, you would hit star three which would show us that you want to make a statement. And I see somebody, a call-in user who has raised their hand. Your line has been unmuted. Please state your name and you can give us your statement.

MR. HARRINGTON: All right. Thank you. This is Mark Harrington from Newsday. I'm calling not to make a statement but to -- to make sure I understand something correctly. At the beginning of the --the conference, you mentioned the stated revenue increases in the billing packs. I noticed in a most recent filing that there was a -- a notice of corrections and updates that this -- that the National Grid had filed. And it seems as though those are substantially higher than the initial request, something like 272 million --.

A.L.J. COSTELLO: We're -- we're -- we're not here to answer questions at this time. If you do have questions, you can -- you can call our public information officer. The information that we

have used is -- and information that's in the notice was from the initial filing.

MR. HARRINGTON: Okay. So the -- the notice of this meeting has the notice of corrections and updates on it. That's where I saw this. And I was asking a question. I'm just -- I was just telling you to understand exactly what the -- the initial notice you made when you opened the segment.

A.L.J. COSTELLO: We can do this offline. It’s -- this is not the proper forum unless you're going to make a statement.

MR. HARRINGTON: Okay. No problem. Thank you.

A.L.J. COSTELLO: Okay. Thank you.

MR. WHITE: Your Honor, Mary Finneran has her hand up.

A.L.J. COSTELLO: Okay.

MS. FINNERAN: Hi. I just wanted to correct some things I said. I said ten horsepower. Its 10,000 horsepower for the amp to 22,000 for the Athens and its 18,000 horsepower from the Dover to 30,000 horsepower and a -- a full -- probably the 20 -- or I think 18,000 horsepower in Brookfield to 42,000 which is onerous in a 24,000 -- 24-inch

pipeline cannot handle that increased capacity. I just wanted to correct myself. And I also wanted to the commend the words of Sara Gronim and a woman named Zoe, both from Brooklyn. I applaud their statement and you can just reiterate all of what they said for me and Kim Fraczek as well. Thank you very much. And I will try to be signing on for other -- to say other things too later, thank you, if I may.

A.L.J. COSTELLO: Thank you. So I just want to remind everyone that they may sit -- submit public comments throughout these proceedings and by the various means that I've described earlier and that are listed in the public notice of statement hearing that was issued earlier. And it was issued on June 20th of 2023. We will be holding an additional public hearing --.

MR. WHITE: Your Honor, we have one more -- we have one more raised hand. I apologize.

A.L.J. COSTELLO: Okay. That's all right. Thank you.

MR. WHITE: Sure. Unmute.

A.L.J. COSTELLO: Go ahead, unmute.

MR. WHITE: Thank you.

MS. WILSON: Hi.

A.L.J. COSTELLO: Hi.

MS. WILSON: Good afternoon. I'm Angie Wilson and I reside in Brooklyn. And I'm calling in with my brief comments to oppose the rate hike by National Grid. You know, it seems to me that this infrastructure, enhancement and maintenance and the pre-point hub should all be expenses that are part of the business plan of National Grid and not a cause to rate hikes. And that the PSC should really consider and wonder why the ratepayer should bear the burden of these hikes while the -- these shareholders will profit more.

And with regard to the -- the nuance of safety and reliability as a clause by which these expansive solidifications of the fossil fuel grid should be reviewed with an independent study of these demands for these rate hikes and plans by National Grid.

So I'm asking the PSC to please assign an independent study looking into these claims and these needs and the profits that would be made as a result of the granting of such a rate hike. And ultimately on the bigger picture, expanding fossil fuels is not where we need to go. And obviously, the

grid is a profit-making industry. And what we need to be looking at a publicly-owned grid whether it be for electrical transmission, whether it be pipelines, even for so-called clean hydrogen, whatever. Highways, grids, these are public goods and they need to be maintained to benefit the public through public interest. Thank you. Good-bye.

A.L.J. COSTELLO: Thank you. So as I was saying, there will be an additional public statement hearing this evening at six p.m. And we'll hold additional public statement hearings at one p.m. and six p.m. tomorrow. And we will be holding in-person public statement hearings. We have not determined the locations and the dates yet for that. As soon as the notices go out, the notices are posted on -- on the case file. So any parties who are on the party file will get notice of that. And we ask generally that the company publish that closer to the date of the public statement hearing so that people get reminded and note -- and notified of it at that time. But that will be sometime probably the end of September that we'll be having in-person public statement hearings.

So Judge Leary and I would like thank

everyone for participating. And we also we would like to thank Joe White and Sangeetha Kailis from our consumer services office for administering this hearing. And we'd like to thank the court reporter. Our hearing is now concluded and we're going to go off the record.

MR. WHITE: We are off the record, Your Honor.

(The hearing concluded at 1:55 p.m.)

8/1/23 - National Grid, NY - 23-G-0225/23-G-0226

STATE OF NEW YORK

I, ANTHONY MCCLAIN, do hereby certify that the foregoing was reported by me, in the cause, at the time and place, as stated in the caption hereto, at Page 1 hereof; that the foregoing typewritten transcription consisting of pages 1 through 40, is a true record of all proceedings had at the hearing.

IN WITNESS WHEREOF, I have hereunto subscribed my name, this the 8th day of August, 2023.

ANTHONY MCCLAIN, Reporter